

		while Plaintiff has not met its burden of showing a defense to enforcement. The motion to compel arbitration is granted. This action is stayed pending completion of the arbitration. (Code Civ. Proc., § 1281.4.) The Court sets an arbitration status conference for March 4, 2027 at 9AM in Department N18. Defendants shall give notice of the ruling and of the arbitration status conference.
10.	2025-1525455 Chatterfield vs. Yanez	The Court sustains Defendants Bettina Yanez, Peter Joseph Flanagan and Yanez & Associates Divorce and Family Law's Demurrer to Plaintiff Angela Chatterfield's Complaint with 20 days leave to amend. Plaintiff has 20 days leave to amend after receiving notice of this Order. Defendants' Motion to strike is mooted by the ruling on Demurrer. <u>Request for Judicial Notice</u> The request for judicial notice is granted. <u>Merits</u> Plaintiff alleges that Defendants represented her in an underling dissolution matter. (Compl., ¶10.) On July 21, 2025, Plaintiff signed a retainer agreement with Yanez & Associates. (Compl., ¶15., Ex. Exhibit K.) Plaintiff paid a retainer of \$25,000, which sum Plaintiff borrowed from her sister. (Compl., ¶16.) Plaintiff admits that Defendants refunded \$16,024 to Plaintiffs sister keeping \$8,976 for their services. (Compl., ¶130.) 1. <u>The Demurrer is sustained to the first and second causes of action for fraud.</u> In these two fraud claims, Plaintiff also alleges that Defendants lied to Plaintiff when asserting that: - A trial would be necessary to determine prenuptial agreement validity. - The burden of proof was on Plaintiff to prove the agreement invalid. - A \$25,000 retainer was reasonable and necessary for this work. - Extensive witness preparation and expert testimony would be required

(Compl., ¶29.)

In her first two causes of action for fraud, Plaintiff incorrectly attributes language to specific Family Code statutes where such language does not exist; Plaintiff uses the fabricated language as the basis for her misrepresentation claims.

Concerningly, Plaintiff did not address the inaccurate statutory language in her opposition.

The Court admonishes Plaintiff that litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow the correct rules of procedure. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247.) A self-represented litigant is not entitled to any greater consideration than other litigants and attorneys. (*Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties]; see Cal Rules of Court, rule 1.6(15) [defines “parties” as including both self-represented persons and persons represented by an attorney of record without making any distinction between them].)

“The elements of fraud that will give rise to a tort action for deceit are: ‘(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.’” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974, internal quotation marks omitted; CACI 1900.) “The law is well established that actionable misrepresentations must pertain to past or existing material facts. Statements or predictions regarding future events are deemed to be mere opinions which are not actionable.” (*Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1469, internal citation omitted.)

The Court notes that some of these allegations are not made as to past or existing fact and thus not actionable as an intentional misrepresentation.

Plaintiff also alleges that her attorneys conspired with opposing Counsel with regard to a disagreement after an order of the court. (Compl., ¶¶87-88.)

California Rules of Court, rule 5.125(e)(1) expressly requires counsel to work together to prepare proposed orders after hearings where there is a disagreement about the proposed order. Far from being improper “conspiracy,” meeting with opposing counsel to draft and

finalize orders after a hearing is precisely what the Rules of Court require attorneys to do. Plaintiff's mischaracterization of mandatory procedural compliance as fraud demonstrates a fundamental misunderstanding of California family law practice and fails as a matter of law.

Moreover, Plaintiff's characterization of a Court Order from the underlying Family Law Judge is not well-taken.

Plaintiff has failed to state a claim.

Further, Plaintiff does not plead her claims with specificity. She lumps Defendant together and does not identify which Defendant made which specific representation, to whom, at what time, or in what context. (*Charnay v. Cobert* (2006) 145 Cal.App.4th 170, 185.)

The Demurrer is sustained with leave to amend.

2. The Demurrer is sustained to the third cause of action for malpractice.

Plaintiff alleges that Defendants' representation fell below the standard of care because they said a trial would be necessary to determine validity of her prenuptial agreement/the burdens of proof/ and representation that \$25k was needed. (Compl., ¶102.)

This overlaps with the arguments above where Plaintiff has cited the wrong statutes/misquotes the text of the statutes.

Plaintiff also alleges that Defendants withdrew from representation therefore "abandoning her". (Compl., ¶105.) An attorney may not withdraw from representation until the attorney has taken "reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel." (California Rules of Professional Conduct, ("Rule") 1.16(d).)

The Court sustains the Demurrer, however, given the inaccurate citations to Family Code sections, with leave to amend.

3. The Demurrer is sustained to the fourth cause of action for breach of fiduciary duty.

Defendants argue that this claim is duplicative.

This is a colorable argument. (See *Charnay v. Cobert* (2006) 145 Cal.App.4th 170, 186; see Compl., ¶¶109-112.)

The claims are the same.

The Demurrer is sustained with leave to amend.

4. The Demurrer is sustained to the fifth cause of action for breach of contract.

Plaintiff repeats her allegations that Defendants abandoned her by withdrawing as her counsel, thereby breaching the retainer agreement. (Compl., ¶127.)

“To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff’s performance of the contract or excuse for nonperformance, (3) defendant’s breach, and (4) resulting damage to the plaintiff.” (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; CACI 303.)

Here, Plaintiff does not point to any specific clause in the contract requiring continued representation.

Moreover, Plaintiff’s own verified Complaint challenges this conclusion, with reference to the exhibits. (*Barnett v. Fireman’s Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505—“we rely on and accept as true the contents of the exhibits and treat as surplusage the pleader’s allegations as to the legal effect of the exhibits”; *George v. Automobile Club of Southern Calif.* (2011) 201 CA4th 1112, 1130—“trial court was not required to credit plaintiff’s allegations that extrinsic evidence ‘renders the insurance contract at issue here ambiguous’” where language of policy attached to complaint showed otherwise.)

Here, the exhibits attached to the Complaint show that on October 13, 2025, Plaintiff ordered Defendants in writing to cease all work until she received satisfactory answers to her questions regarding Family Code section 1615 and the burden of proof regarding the prenuptial agreement: “At this time, you are not authorized to file, draft, revise, or otherwise perform any further work or billable activity related to either the RFOs or any other pleadings in this case.” (Compl., Ex. G.)

Further, the Retainer Agreement is entered into between the corporate Defendant and Plaintiff; there is no allegation that Plaintiff entered into a contract with the individual Defendants.

Thus, the Demurrer is sustained.

The Court orders Defendants to serve notice.